

TRANSPORTATION SERVICES AGREEMENT — ORION FREIGHT

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1. Parties and purpose

This controlled synthetic agreement defines transportation-service obligations between the enterprise and Orion Freight. It is designed to represent a carrier-specific commercial source for enterprise knowledge retrieval and comparison.

2. Service scope

Selected domestic road lanes and overflow transportation capacity activated through approved routing instructions.

3. Service-level obligations

The carrier must perform the contracted services according to the applicable service category, route commitments, approved operating instructions, and the active Transportation Policy. Contract-specific obligations apply where they are stricter than general operating requirements.

4. Performance measurement

Performance is reviewed using the enterprise Logistics KPI Dictionary and carrier-governance process. OTIF, on-time delivery, damage rate, claim rate, and cost-related indicators may be used according to the contracted scope.

5. Delay penalty

This agreement does not contain an automatic per-shipment financial penalty for ordinary delay.

Carrier-attributable service failures are addressed through corrective-action requirements and commercial review. Material or repeated failures may support renegotiation, scope reduction, or replacement under the Carrier Management Policy.

6. Force majeure

Orion must notify the enterprise when an uncontrollable external event materially affects performance and must provide reasonable evidence and mitigation actions. Because the agreement has no automatic ordinary-delay penalty, the force-majeure clause primarily affects breach assessment and remediation rather than a predefined service credit.

7. Corrective action and escalation

Repeated service failures may trigger corrective action and formal escalation under the Carrier Management Policy. Contractual penalties do not prevent the enterprise from requiring a recovery plan or evaluating replacement where governance conditions are met.

8. Data handling

The carrier may process only the enterprise and customer information required to execute the contracted service. Data sharing must comply with the active Data Sharing Policy and Information Security Policy.

9. Special commercial terms

Commercial review may establish a negotiated remediation plan after repeated performance failures, but no predefined percentage service credit is created by this clause.

10. Governing enterprise documents

Transportation Policy; Carrier Management Policy; Logistics KPI Dictionary; Data Sharing Policy; Information Security Policy; applicable Approval Authority Matrix.

11. Document control

Controlled synthetic document generated for the Enterprise Knowledge AI System evaluation corpus. Contract interpretation in this corpus must consider the specific carrier, clause scope, effective date, and applicable enterprise governance.